

1. Preliminary decree is one

- (a) which determines the rights of the parties with regard to some or one of the matters in controversy in the suit but does not finally dispose of the suit
- (b) which determines the rights of the parties with regard to some or one of the matters in controversy in the suit, which may have the effect of final disposal of the suit
- (c) both (a) & (b)
- (d) ☒ neither (a) nor (b).

2. Order has been defined as a formal expression of any decision of a civil court which is not a decree, under

- (a) Section 2(1) of CPC
- (b) Section 2(14) of CPC
- (c) Section 2(9) of CPC
- (d) ☒ Section 2(16) of CPC.

3. Foreign court under section 2(5) of means

- (a) a court situated outside India
- (b) ☒ a court situated outside India and not established under the authority of Government of India
- (c) a court situated in India applying foreign law
- (d) all the above.

4. The Code of Civil Procedure was enacted on

- (a) 21st January, 1908
- (b) 21st February, 1908
- (c) ☒ 21st March, 1908
- (d) 1st January, 1908

5. Civil Procedure Code came into force on

- a) 01 Jan 1908
- b) 01 Apr 1908
- (c) ☒ 01 Jan 1909
- d) 15 Jun 1909

6. Section 2 of CPC deals with

- (a) ☒ Plaintiff
- (b) Definitions
- (c) Jurisdiction
- (d) Date of commencement of CPC

7. CPC extends to

- a) Whole India
- (b) ☒ Whole India except Nagaland, tribal areas & Jammu and Kashmir
- (c) Whole India except Nagaland, tribal area
- d) Whole India except Jammu and Kashmir

8. "Tribal Area" under Section 1 of the CPC means territories included in tribal areas of:

- a) Assam, Tripura
- b) Mizoram, Meghalaya
- (c) ☒ All the above
- d) None of these

9. The decree holder

- ☒ (a) Must be the plaintiff
☐ (b) Need not be the plaintiff
☒ (c) Both a and b
☐ (d) None of these

10. A claim for "mesne profit" of property lies when

- ☐ (a) There is the possibility of profit even without ordinary diligence
☒ (b) There is wrongful possession of the said property
☐ (c) Improvements have been made by person in wrongful possession
☐ (d) None of these

11. The Code of Criminal Procedure came in force on

- ☒ (a) 1st day of April 1974
☐ (b) 1st day of August 1974
☐ (c) 1st day of September 1974
☐ (d) None of the above.

12. The Code of Criminal Procedure extends to

- ☐ (a) whole of India excluding except the States of Bihar and Jharkhand
☒ (b) whole of India except the State of Jammu and Kashmir
☐ (c) Both (a) and (b) above
☐ (d) None of the above

13. Section 2(a) of the Code of Criminal Procedure defines

- ☒ (a) Bailable Offence
☐ (b) Non Bailable Offence
☐ (c) Both (a) and (b) above
☐ (d) None of the above.

14. What is a cognizable offence as per Cr. P.C.?

- ☒ (a) Offences in which a Police Officer can arrest without warrant
☐ (b) Offences in which a Police Officer cannot arrest without warrant
☐ (c) (b) is true but (a) is false.
☐ (d) None of the above.

15. What is meant by "notification" as per Cr.P.C.?

- ☐ (a) a notification published in National Newspapers;
☒ (b) a notification published in the Official Gazette
☐ (c) a notification published in local Newspapers
☐ (d) All of the above.

16. Which of the following is included in Place as per definitions of "Place" in Cr.P.C.?

- ☐ (a) House
☐ (b) Building
☒ (c) Both (a) and (b) above
☐ (d) None of the above.

17. The process for issue of proclamation for absconding person is mentioned in which section of the Code of Criminal Procedure?

- ☐ (a) Section 73
☐ (b) Section 83
☒ (c) Section 82
☐ (d) None of the above.

18. How can a proclamation be published as per the Code of Criminal Procedure?

- (a) it shall be publicly read in some conspicuous place of the town or village in which such person ordinarily resides;
- (b) it shall be affixed to some conspicuous part of the house or home-stead in which such person ordinarily resides or to some conspicuous place of such town or village;
- (c) a copy thereof shall be affixed to some conspicuous part of the Court-house

☒ (d) All of the above.

19. The process for Attachment of property of person absconding is mentioned in which section of the Code of Criminal Procedure?

- ☒ (a) Section 83
- (b) Section 2(c)
- (c) Section 82
- (d) None of the above.

20. As per provisions of Cr.P.C., which of the following is true?

- ☒ (a) The court competent of trying an offence can order the attachment of Immovable property of the accused absconding.
- (b) The court competent of trying an offence can order the attachment of immovable property of the accused absconding with approval of high court only
- (c) Both (a) and (b) above
- (d) None of the above

21. If the property ordered to be attached is a debt or other movable property, the attachment can be made—

- (a) by seizure
- (b) by the appointment of a receiver;
- ☒ (c) Either (a) or (b)
- (d) None of the Above

22. If the property ordered to be attached is an immovable property, the attachment can be made—

- (a) by taking possession
- (b) by the appointment of a receiver;
- ☒ (c) Either (a) or (b)
- (d) None of the Above

23. While passing an attachment order in respect of a movable property:

- (a) If the property to be attached is situated in a district, the Court can authorise the attachment of any property belonging to such person within the district in which it is made.
- (b) If the property to be attached is not situated in a district, the Court cannot suo motu authorise the attachment of any property belonging to such person within the district in which it is made.

- ☒ (c) Both (a) and (b) are true.
- (d) None of the above

24. When a claim/ objection against the order of attachment of property is made
- (a) the claim/objection should be outrightly rejected as the attachment is absolute
 - ✓ (b) the claim/objection should be enquired into.
 - (c) (a) above is true and (b) is false
 - (d) None of the above

25. A claim/Objection against the order of attachment of property situated within the district can be made in
- ✓ (a) the court which ordered the attachment
 - (b) the court of Chief Judicial Magistrate only
 - (c) The court of District Judge only
 - ✗ (d) The court of District Magistrate only

26. In the IPC, the word "woman" denotes a human being who is

- (a) A female human being above 18 years of age.
- (b) A female human being above 14 years of age
- (c) A female human being above 7 years of age
- ✓ (d) A female human being of any age

27. In IPC the word 'Servant of Government' denotes

- (a) any officer or servant continued, appointed or employed in India by Government.
- (b) any officer or servant continued, appointed or employed in India under the authority of Government
- ✓ (c) (a) and (b) both
- (d) None of the above

28. Which of the following statement is/are true in respect of IPC:

- ✓ (a) A collector exercising jurisdiction in a suit under Act 10 of 1859 is a Judge.
- (b) A collector exercising jurisdiction in a suit under Act 10 of 1859, is not a Judge
- (c) (b) is true but (a) is false
- (d) None of the above

29. Which of the following sections of IPC defines Public Servant:

- (a) Section 22
- (b) Section 23
- (c) Section 20
- ✓ (d) Section 21

30. Which of the following can not be Movable Property as per IPC?

- (a) Land
- (b) Things attached to the earth
- ✓ (c) Both (a) and (b) above
- (d) None of these

31. 'Wrongful loss' has been defined in IPC as:

- ✓ (a) the loss by unlawful means of property to which the person losing it is legally entitled
- (b) the loss by unlawful means of property to which the person losing it is not legally entitled
- (c) Gain by unlawful means of property to which the person gaining is never entitled by law of the land
- (d) None of the above

32. 'Dishonestly' has been defined in IPC as:
- (a) Whoever does anything with the intention of causing wrongful gain to one person is said to do that thing "dishonestly"
 - (b) Whoever does anything with the intention of causing wrongful loss to another person, is said to do that thing "dishonestly"
 - ✓ (c) (a) and (b) both
 - (d) None of the above

33. The expression 'Reason to believe' has been defined in:

- (a) Evidence Act
- (b) Property Act
- ✓ (c) Indian Penal Code
- (d) General Clauses Act

34. 'A' sets fire, by night, to an inhabited house in a large town, for the purpose of facilitating a robbery and thus causes the death of a person. 'A' knew that a family of four member lived in the house and he did not intend to cause death. He was very sorry that death has been caused by his act. In these facts which of the following is true?

- (a) He has caused death voluntarily.
- ✓ (b) He has not caused death voluntarily.
- (c) (b) is true but (a) is false.
- (d) None of the above.

35. In IPC, the exemption from the offence of "harbouring" is provided to:

- (a) Husband if the wife is evading apprehension,
- (b) Wife if the husband is evading apprehension
- ✓ (c) Both (a) and (b) above
- (d) None of the above

36. In case of any offence under IPC, which of the following type of imprisonment may be awarded as punishment?

- (a) Simple imprisonment
- (b) Rigorous Imprisonment
- ✓ (c) Both (a) or (b)
- (d) None of the above

37. In the case of imprisonment for life, the punishment can be commuted by appropriate government to which type of punishment:

- ✓ (a) Imprisonment of either description for a term not exceeding fourteen years.
- (b) Imprisonment of either description for a term not exceeding sixteen years.
- (c) Punishment can be commuted on the advice of Supreme Court
- (d) None of the above

38. Where no sum is expressed to which a fine may extend, the amount of fine to which the offender is liable:

- (a) is limited to the amount of loss caused or anticipated.
- (b) is unlimited.
- ✓ (c) is unlimited but the fine should not be excessive.
- (d) None of the above

39. When an offence is punishable with imprisonment as well as fine, the term for which the Court can direct the offender to be imprisoned in default of payment of a fine shall not exceed:

- (a) one-sixth of the term of imprisonment which is the maximum fixed for the offence.
- X (b) one-fourth of the term of imprisonment which is the maximum fixed for the offence.
- (c) (a) is true but (b) is false.
- (d) None of the above

40. Which type of the following imprisonment may be awarded in case of default of fine when an offence is punishable with fine only and the amount of default does not exceed fifty rupees?

- (a) One month simple imprisonment
- 1 (b) One month rigorous imprisonment
- (c) Two months rigorous imprisonment
- (d) Two months simple imprisonment

41. 'A' is sentenced to a fine of one hundred rupees and to four months' imprisonment in default of payment. If seventy-five rupees be paid at the time of the expiration of the first month, or at any later time while A continues in imprisonment,

- (a) A will be immediately discharged.
- (b) A has to wait till the completion of second month ✓
- (c) A has to wait till the completion of third month
- (d) None of the above

42. 'A', being an officer directed by law to take property in execution, in order to satisfy a decree pronounced in Z's favour by a Court of Justice, knowingly disobeys that direction of law, with the knowledge that he is likely thereby to cause injury to 'Z'. A has committed an offence under which section of IPC?

- (a) Section 170 (b) Section 141
- (c) Section 166 (d) Section 167

43. Which section of the IPC makes the act of a Public servant unlawfully engaging in trade a punishable offence?

- X (a) Section 166
- (b) Section 167
- (c) Section 169
- (d) Section 168

44. Which section of the IPC makes the act of Personating a public servant, a punishable offence?

- (a) Section 170
- (b) Section 175
- (c) Section 168
- (d) Section 179 ✓

45. Under provisions of IPC, wearing garb or carrying token used by public servant with fraudulent intent, can be punished?

- (a) with imprisonment of either description for a term which may extend to three months,
- (b) With Fine which may extend upto rupees two hundred
- (c) With (a) or (b) or with both ✓
- (d) None of the above

46. 'A', being legally bound to appear before the High Court at Calcutta, in obedience to a subpoena issuing from that Court, intentionally omits to appear. 'A' has committed the offence defined in which section of IPC?

- ☒ (a) Section 172 (b) Section 174
(c) Section 176 (d) Section 177

47. 'A', a landholder, knowing of the commission of a murder within the limits of his estate, wilfully misinforms the Magistrate of the district that the death has occurred by accident in consequence of the bite of a snake. 'A' is guilty of the offence defined in which section of IPC?

- ☒ (a) Section 176 (b) Section 174
(c) Section 177 (d) Section 178

48. 'A', a village watchman, knowing that a considerable body of strangers has passed through his village in order to commit a dacoity in the house of 'Z', a wealthy merchant residing in a neighbouring place but he wilfully misinforms the police officer that a body of suspicious characters passed through the village with a view to commit dacoity in a certain distant place in a different direction. Here 'A' is guilty of the offence defined in which section of IPC?

- ☒ (a) Section 171 (b) Section 172
(c) Section 175 (d) Section 177

49. Which section of the IPC makes the act of refusing to answer public servant authorized to question, a punishable offence?

- ☒ (a) Section 177 (b) Section 178
(c) Section 179 (d) Section 180

50. 'A' informs a Magistrate that 'Z', a police-officer, subordinate to such Magistrate, has been guilty of neglect of duty or misconduct, knowing such information to be false, and knowing it to be likely that the information will cause the Magistrate to dismiss 'Z'. 'A' has committed the offence defined in which section of IPC?

- ☒ (a) Section 181 (b) Section 182
(c) Section 183 (d) Section 180

51. An order is promulgated by a public servant lawfully empowered to promulgate such order, directing that a religious procession shall not pass down a certain street. 'A' knowingly disobeys the order, and thereby causes danger of riot. 'A' has committed the offence defined in which section of IPC?

- ☒ (a) Section 185
(b) Section 186
(c) Section 187
(d) Section 188

52. Under provisions of IPC, making the threat of injury to induce person to refrain from applying for protection to public servant, can be punished?

- (a) With imprisonment of either description for a term which may extend to one year
(b) With Fine
☒ (c) With (a) or (b) or with (a) and (b) both
(d) None of the above

53. Under provisions of IPC, making Breach of contract to attend on and supply wants of helpless person, can be punished?

- (a) With imprisonment of either description for a term which may extend to three months
- (b) With fine which may extend to two hundred rupees
- ☒ (c) With (a) or (b) or with (a) and (b) both
- (d) None of the above

54. 'A' falsely informs a policeman that he has been assaulted and robbed in the neighbourhood of a particular village. He does not mention the name of any person as one of his assailants, but knows it to be likely that in consequence of this information the police will make enquiries and institute searches in the village to the annoyance of the villagers or some of them. 'A' has committed an offence under which section of IPC?

- ☒ (a) Section 181
- (b) Section 182
- (c) Section 183
- (d) Section 188

55. Under the Indian Penal code, the expression "illegal" is applicable to

- (a) everything which is an offence
- (b) everything which is prohibited by law
- (c) everything which furnishes ground for a civil action
- ☒ (d) All of the above

56. Indian Evidence Act applies to

- (a) proceedings before tribunals
- (b) proceedings before the arbitrator
- ☒ (c) judicial proceedings in courts.
- (d) all the above.

57. 'A' is tried for the murder of B. During trial, which of the following is not a relevant fact?

- (a) That A murdered C and this was known to B
- (b) B had tried to extort money from A threatening to make this knowledge public
- (c) Both (a) and (b) above
- ☒ (d) None of the above.

58. Section 14 of the Evidence Act makes relevant the facts which show the existence of

- (a) Any state of mind
- (b) Any state of body or bodily feeling
- ☒ (c) Both (a) & (b)
- (d) Neither (a) nor (b) above

59. How much part of confession during police custody may be proved against the accused in criminal proceedings?

- (a) Leading to recovery only
- (b) In full
- ☒ (c) No part of the confession
- (d) All of above

60. The court may take opinion from the expert of which of the following field:

- (a) Finger impression
- (b) Hand writing
- ☒ (c) Both (a) and (b) above
- (d) None of the above

61. Which of the following statements is true?

- (a) A fact which is admitted by the parties only need not be proved.
- (b) A fact which is admitted by the parties or their agents need not be proved.
- (c) A fact which is admitted has to be substantiated by other evidence for it to be proved
- ☒ (d) Both (a) and (b) above

62. Which of the following facts cannot be proved by oral evidence?

- (a) Documents
- (b) Electronic Records
- ☒ (c) Both (a) and (b) above
- (d) None of the above

63. In court proceedings, Oral evidence must be?

- ☒ (a) Direct
- (b) Indirect
- (c) Both (a) and (b) above
- (d) None of the above

64. Which of the following is secondary evidence?

- ☒ (a) A photocopy of the original document
- (b) A certified copy of the original document
- (c) Both (a) and (b) above
- (d) None of the above

65. Which of the following statement is true?

- (a) Oral account of the contents of a document given by a person is primary evidence.
- (b) Oral account of the contents of a document given by a person is secondary evidence.
- ☒ (c) Both (a) and (b) above
- (d) None of the above

66. Under which of the following circumstances, Indian Evidence Act provides that secondary evidence may be admissible?

- (a) When the existence of the original has been admitted by the party
- ☒ (b) When the original is destroyed or lost
- (c) Both (a) and (b) above
- (d) Neither (a) nor (b) above

67. If a document is a public document, it can be proved by?

- (a) Filing certified copy
- (b) Filing simple copy
- (c) Saying so
- ☒ (d) Calling the officer who published the document

68. A document is presumed to be genuine if it is:

- (a) Twenty years old
- ☒ (b) Thirty years old
- (c) Forty years old
- (d) None of the above

69. Which of the following statements regarding what is referred to as 'computer output' under Section 65B of the Indian Evidence Act is correct?

Statement (i) - information contained in a computer which is printed on paper

Statement (ii) - information contained in a computer which is stored in optical media

Statement (iii) - information in a computer that cannot be viewed but the regular operator remembers

Option:

- (a) Statement (i) is correct
- (b) ✗ Statements (i) and (ii) are correct
- (c) ☒ Statements (ii) and (iii) are correct
- (d) Statements (i) and (iii) are correct

70. For conduct to be relevant under section 8 of the Evidence Act, it

- (a) must be previous
- (b) must be subsequent
- (c) ☒ may be either previous or subsequent
- (d) only subsequent & not previous.

71. As per Consumer Protection Act, 1986, 'complainant' means

- A. A consumer
 - B. The Central Govt.
 - C. Legal heir of deceased consumer who made complaint
 - D. Any voluntary consumer association registered under the Companies Act, 1956
- a) B & C only
 - b) A & C only
 - c) All the ABCD
 - d) A, B & C only

72. As per Consumer Protection Act, 1986, who is a consumer?

- a) A person buying goods either for re-sale or for use in large scale profit making activity
- b) A lottery ticket holder
- (c) ☒ Any person who buys any goods for consideration which has been paid, promised or partly paid
- d) Applicant who merely applies for allotment of shares

73. As per Consumer Protection Act, 1986, what is a 'consumer dispute'?

- a) ☒ 'Consumer dispute' means a dispute where the person against whom a complaint has been made, denies or disputes the allegations contained in the complaint.
- b) 'Consumer dispute' means a dispute where the person against whom a complaint has been made, has not paid any compensation.
- c) 'Consumer dispute' means a dispute where the person against whom a complaint has been made in a civil court only.
- d) Consumer dispute' means a dispute where the person against whom a complaint has been made and who has admitted the allegation.

74. Choose from one of the options given below the paragraph to fill in the blanks.

As per consumer Protection Act, 1986, the objects of the Central Council shall be to promote and protect (1)-----
--- such as, - the right to be protected against the marketing of goods and services which are (2)-----; the right to be informed about the(3)----- as the case may be so as to protect the consumer against(4) -----

- a) (1)unfair trade practice (2)rights of the consumers(3)quality, quantity, potency, purity, standard and price of goods and services (4)hazardous to life and property
- b) (1)rights of the consumers(2)unfair trade practices (3)quality, quantity, potency, purity, standard and price of goods and services(4)hazardous to life and property
- c) (1)rights of the consumers (2)hazardous to life and property (3)quality, quantity, potency, purity, standard and price of goods and services (4)unfair trade practices
- d) (1) quality, quantity, potency, purity, standard and price of goods and services(2)rights of the consumers (3)hazardous to life and property (4) unfair trade practice

75. Which of the following statement/s is/are correct?

As per Consumer Protection Act, 1986, the objects of the Central Council shall be to promote and protect the rights of the consumers such as -----

- A. The right to be assured, wherever possible, access to a variety of goods and services at competitive prices
- B. The right to be heard and to be assured that consumer's interests will receive due consideration at appropriate fora.
- C. The right to consumer education.
- D. The right to equality, liberty and freedom for all

Options:

- a) All - A B C & D
- b) ✓ A, B and C only
- c) A & B only
- d) B & C Only

76. What is the limit of claim of compensation / jurisdiction up to which complaints can be entertained by District Consumer Forum?

- a) ✓ The District Forum shall have jurisdiction to entertain complaints where the value of the goods or services and the compensation, if any, claimed does not exceed Rupees twenty lakhs.
- b) The District Forum shall have jurisdiction to entertain complaints where the value of the goods or services and the compensation, if any, claimed does not exceed Rupees fifty lakhs.
- c) The District Forum shall have jurisdiction to entertain complaints where the value of the goods or services and the compensation, if any, claimed does not exceed Rupees one crore.
- d) The District Forum shall have jurisdiction to entertain complaints where the value of the goods or services and the compensation, if any, claimed does not exceed Rupees ten lakhs.

77. What is the period within which any person aggrieved by an order made by the District Forum may prefer an appeal against the order to the State Commission?

- a) ✓ Any person aggrieved by an order made by the District Forum may prefer an appeal within a period of thirty days from the date of the order.
- b) Any person aggrieved by an order made by the District Forum may prefer an appeal within a period of forty five days from the date of the order
- c) Any person aggrieved by an order made by the District Forum may prefer an appeal within a period of fifteen days from the date of the order
- d) Any person aggrieved by an order made by the District Forum may prefer an appeal within a period of ninety days from the date of the order

78. Mr. X aggrieved by deficiency of services in a hospital is seeking compensation of Rs. 50 lakhs. Which consumer forum does he have to approach?

- a) He has to approach District Consumer Forum.
- b) He has to approach State Commission. ✓
- c) He has to approach National Commission.
- d) He cannot seek compensation of Rs. 50 lakhs for deficiency in service in any consumer court.

79. Complete the following:

The National Commission consists of -----

- * a) (a) a person who is or has been a Judge of the Supreme Court, to be appointed by the Central Government, who shall be its President.
(b) not less than three, and not more than such number of members, as may be prescribed, and one of whom shall be a woman.
- * b) (a) a person who is or has been a Judge of the Supreme Court, to be appointed by the Central Government, who shall be its President.
(b) not less than four, and not more than such number of members, as may be prescribed, and two of whom shall be a woman.
Provided that not more than fifty per cent of the members shall be from amongst the persons having a judicial background
- * c) (a) a person who is or has been a Judge of the Supreme Court, to be appointed by the Central Government, who shall be its President.
(b) not less than five, and not more than such number of members, as may be prescribed, and one of whom shall be a woman.
- * d) (a) a person who is or has been a Judge of the Supreme Court, to be appointed by the Central Government, who shall be its President.
(b) not less than four, and not more than such number of members, as may be prescribed, and one of whom shall be a woman.
Provided that not more than fifty per cent of the members shall be from amongst the persons having a judicial background

80. Choose the options given below the paragraph to fill in the blanks.

Paragraph: "Deficiency" means any (1)----- or inadequacy in the quality, nature and manner of (2)----- by or under any law for the time being in force or has been undertaken to be performed by a person (3)----- or otherwise (4)-----.

- a) (1) fault, imperfection, shortcoming (2) performance which is required to be maintained (3) in pursuance of a contract (4) in relation to any service
- b) (1) performance which is required to be maintained (2) fault, imperfection, shortcoming (3) in pursuance of a contract (4) in relation to any service
- c) (1) in relation to any service (2) fault, imperfection, shortcoming (3) performance which is required to be maintained (4) in pursuance of a contract
- d) (1) fault, imperfection, shortcoming (2) in pursuance of a contract (3) performance which is required to be maintained (4) in relation to any service

81. The Consumer Protection Act protects the interest of the consumers when a trader or service provider, as the case may be, has charged for the goods or for the services mentioned in the complaint, a price in excess of the price:

- A. fixed by or under any law for the time being in force
- B. displayed on the goods or any package containing such goods
- C. displayed on the price list exhibited by him by or under any law for the time being in force

Choose the suitable answer from the following:

- a) A only (b) B only
- (c) C only (d) A, B & C

82. Who can be the President of District Forum?

- a) Collector of the district
- b) A person who is qualified as advocate
- c) ✓ A person who are qualified to be a District Judge
- d) None of the above

83. The complaint shall ordinarily be decided within -

- a) ✓ 21 days from the date on which the complaint was received
- b) 31 days from the date on which the complaint was received
- c) 45 days from the date on which the complaint was received
- d) No time limit

84. Any person aggrieved by an order made by the National Commission may prefer an appeal against such order to the Supreme Court within a period of _____ days from the order.

- a) 60
- b) 40
- c) 45
- d) 30 ✓

85. As per Consumer Protection Act 1986, "defect" means -

- a) Any fault, imperfection or shortcoming in the quality only ✓
- b) Any fault, imperfection or shortcoming in the quantity and quality also.
- c) Any fault, imperfection or shortcoming in the quantity only.
- d) None of the above.

86. Mr.X applied for allotment of 100 shares with ABC Computers Pvt.Ltd. The shares were not allotted. Mr. X filed a case with the Consumers' forum. ✓

- a) Action of Mr.X is in order.
- b) Mr.X can file a case with the National Commission.
- c) ✓ He is not a consumer; as such he cannot file a case against the company.
- d) He can wait for one more year, after that he can file a case.

87. After the introduction of Consumer Protection Act, 1986 other acts/laws are not enforceable. Read the following:

- A. The above statement is correct.
- B. The above statement is not correct.
- C. ✓ COPRA, 1986, shall be in addition to and not in derogation of any other law.
- D. After 1986, COPRA is only applicable and other laws are repealed.

Choose the correct answer from the following:

- a) A is correct.
- b) B is correct.
- c) ✓ B and C are correct.
- d) A and D are correct.

88. Choose the statement that completes the following sentence correctly.

Sentence: The District Forum shall, on admission of complaint relating to any services,

- a) direct the opposite party to give his version of the case within a period of thirty days.
- b) ✓ direct the opposite party to give his version of the case within a period of 45 days.
- c) direct the opposite party to give his version of the case within a period of 60 days.
- d) direct the opposite party to give his version of the case within a period of three months.

89. Under what circumstances may an appeal be entertained by the National Commission?

- A. The appeal shall be preferred within 30 days from the date of the order of District Forum.
- B. The National Commission may entertain an appeal after the expiry of 30 days, if it is satisfied that there was sufficient cause for not filing.
- C. If the appeal is by a person who is required to pay any amount in terms of an order of the State Commission, the appellant has to deposit 50% of that amount or Rs.25,000 whichever is less.
- D. ✓ If the appeal is by a person who is required to pay any amount in terms of an order of the State Commission, the appellant has to deposit 25% of that amount or Rs.35,000 whichever is less.

Choose the correct answer from the following:

- a) D only ✓
- b) A and B only
- c) A, B and D only ✓
- d) B and C only

90. From the following records, the District Forum, the State Commission or the National Commission shall declare that the notice had been duly served on the opposite party or the complainant.

A. When an acknowledgment or any other receipt purporting to be signed by the opposite party or his agent or by the complainant is received.

B. When the postal article containing the notice is received back with an endorsement purporting to have been made by a postal employee or any person authorized by the courier service, to the effect that the opposite party or agent or the complainant had refused to take delivery of the postal article

C. When opposite party or his agent or the complainant had refused to accept the notice when tendered or transmitted by any means of transmission.

a) Choose the correct answer from the following:

(a) A only (b) B and C only

(c) only (d) All A, B and C ✓

91. Section 24 A of the Consumer Protection Act 1986, relates to –

a) ✓ Limitation period

b) Appeal against the order of National Commission

c) Dismissal of frivolous or vexatious complaints

d) Enforcement of orders of the District Forum, the State Commission or the National Commission

92. With reference to consumer protection act, 1986 match the statements given in column 2 below with reference to their subjects mentioned in column 1.

Column 1	Column 2
A. Medical services are	1. Is obviously deficiency in service
B. Undue delay in declaration of examination result	2. Are covered under the definition of "service".
C. A student	3. Will not be consumer entitled under the Act.
D. A person buying goods for re-sale or use in large scale profit making activity	4. Is a consumer of service of educational institute

Choose one of the following combinations

→ Subject in Column 1 above	A	B	C	D
↓ Options:				
a)	3	2	1	4
b)	3	4	1	2
c)	1	2	3	4
d) ✓	2	1	4	3

93. With reference to consumer protection act, 1986 match the statements given in column 2 below with reference to their subjects mentioned in column 1

Column 1	Column 2
A. A complaint in relation to any goods sold or any service provided	1. Twice a year.
B. The central consumer protection council shall meet	2. May be filed with a District Forum by the consumer to whom such services provided, and by any recognized Consumer Association
C. The state council shall meet	3. Shall be accompanied with any such amount of the fee and payable in such manner as may be prescribed
D. Every complaint	4. At least once in a year

Choose one of the following combinations

→ Subject in Column 1 above	A	B	C	D
↓ Options:				
a)	3	1	2	4
b)	4	1	2	3
c)	2	4	1	3
d)	2	1	3	4

94. With reference to Consumer Protection Act, 1986 match the statements given in column 2 below with reference to their subjects mentioned in column 1.

Column 1	Column 2
A. A complaint in relation to any goods sold or delivered or service provided may be filed with a District Forum	1. unless an opportunity of being heard has been given to the complainant
B. A complaint shall not be rejected	2. by one or more consumers, where there are numerous consumers having the same interest, on behalf of, all the consumers so interested.
C. Where a complaint is admitted by the District Forum	3. it may pass such interim order as is just and proper in the facts and circumstances of the case.
D. Where during the pendency of any proceeding before the District Forum	4. it shall not be transferred to any other court tribunal or any authority set up by other law for the time being in force

Choose one of the following combinations

Statements in Column I above	A	B	C	D
Options:				
a)	3	4	1	2
b)	2	3	4	3
c)	4	1	2	3
d)	2	1	4	3 ✓

95. Choose the options given below the paragraph to fill in the blanks.

The govt. servants and the staff of the Accountant General Office of the Comptroller and Auditor General maintains the records of provident fund of government servants, (1)----- of fund and on retirement final payments are made (2)----- The government servants and the staff of the Accountant General in discharging their duties does not render any service (3)-----, nor hiring of (4)----- hence, maintenance of General Provident fund Accounts does not fall within the meaning of service.

Options:

- a) (1) any service is involved 2)for consideration(3) to the subscribers (4) issue slips of deposits
- b) (1)issue slips of deposits (2) for consideration(3) to the subscribers (4)any service is involved
- c) (1)issue slips of deposits (2)to the subscribers (3)for consideration (4)any service is involved
- d) Any service is involved(2) for consideration (3)to the subscribers (4)issue slips of deposits

96. ✓ Constitution of India came into effect from?

- a) 15th August, 1947
- b) ✓ 26th January, 1950
- c) 15th August, 1950
- d) 2nd October, 1950

97. How many types of Fundamental Rights have been granted by the Constitution of India?

- a) 2
- b) 4
- c) ✓ 6
- d) None of the above

98. Which of the following Fundamental Rights has been granted by the Constitution of India?

- a) Right to Freedom of Religion
- b) Cultural and Educational Rights
- c) Right to Constitutional Remedies
- d) ✓ All of the above

99. Abolition of untouchability has been granted through which Article of the Constitution of India?

- a) ✓ Article 17
- b) Article 16
- c) Article 15
- d) Article 14

100. Article 14 of Constitution of India provides

- ☒ a) Equality before law
- ☒ b) Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth.
- c) Equality of opportunity in matters of public employment.
- d) Abolition of untouchability

101. How many types of writs can the Supreme Court issue under Article 32 of the Constitution?

- a) Two
- b) Three
- c) Four
- d) ☒ Five

102. Article 20 of Constitution provides

- a) Protection of certain rights regarding freedom of speech etc.,
- b) Protection in respect of conviction for offences.
- c) Protection of life and personal liberty.
- d) Protection against arrest and detention in certain cases.

103. Which of the following statements is true?

- a) Equal pay for equal work for both men and women is a Fundamental Right granted under the Constitution of India
- ☒ b) Equal pay for equal work for both men and women is a Directive Principle of State policy under the Constitution of India
- c) Neither a) nor b) is true.
- d) Both a) and b) are true.

104. Article 43 A of the Constitution deals with

- a) Uniform civil code for the citizens
- b) Participation of workers in management of industries.
- ☒ c) Organisation of agriculture and animal husbandry
- d) None of these

105. The President shall be elected by the members of an Electoral College consisting of -

- a) The elected members of both Houses of Parliament;
- b) The elected members of the Legislative Assemblies of the States.
- ☒ c) a) and b) both
- d) None of the above.

106. Which of the following statement/s is/are true —

- a) The President shall hold office for a term of five years from the date on which he enters upon his office,
- b) A person who holds or has held the office of the President is eligible for re-election as President
- c) Neither of the a) and b) is true.
- ☒ d) Both a) and b) are true

107. Which of the following statements is true?

A. In the event of death, resignation or removal of the President, the Vice-President shall act as President until the date on which a new President, elected in accordance with the provisions of the Constitution to fill such vacancy enters upon his office.

B. When the President is unable to discharge his functions owing to absence, illness or any other cause, the Vice-President shall discharge his functions.

C. The President shall not hold any other office of profit.

D. For election to the post of Vice President one should be above 25 years of age.

Options:

- a) A only (b) A and B only.
✓(c) A, B and C only (d) All the above

108. Who can make provision for the discharge of the functions of the President in any contingency not provided for in the Constitution?

a) The President himself b) The Parliament ✓
c) The Prime Minister d) None of the above

109. Which of the following statements is true?

A. The Prime Minister is appointed by the President.

B. Ministers other than the Prime Minister, are appointed by the President on the advice of the Prime Minister..

C. The Ministers shall hold office during the pleasure of the President.

D. A Minister who for any period of six consecutive months is not a member of either House of Parliament shall at the expiration of that period cease to be a Minister

Options:

- a) A. only (b) A. and B.
(c) All except D. ✓(d) All the above

110. Which of the following houses are not subject to dissolution?

a) The House of the People

b) ✓ The Council of States

c) Legislative Assembly

d) None of the above

111. What can be the maximum gap between two sessions of the Parliament?

a) Three Months b) Five Months

c) One year d) ✓ Six Months

112. Who can summon each house of Parliament to meet?

a) ✓ The President of India

b) The Chief Justice of India

c) The Prime Minister

d) The Vice president

113. The Special address by the President is made on the occasion of?

A. At the commencement of the first session after each general election to the House of the People,

B. At the commencement of the first session of each year.

C. Every six months

D. Before the Budget session

Options:

- a) A. only b) ✓ A. and B. only
c) A. and C. only d) All the above

114. Who decides whether a member of either House of Parliament has become subject to any of the disqualifications mentioned in clause (1) of Article 102 of Constitution?

- a) The Attorney General of India
- b) President
- c) The Prime Minister
- d) The Speaker of the Lok Sabha

115. Money Bill can originate only in?

- a) House of the People,
- b) Council of States
- c) Either of the Houses
- d) None of these.

116. The joint session of the Houses of Parliament can be called if:

- a) A Bill is rejected by the other House;
- b) Both the Houses have finally disagreed as to the amendments to be made in a Bill; or
- c) More than six months elapse from the date of the reception of a Bill by the other House without the Bill being passed by it.
- d) All of the above

117. Article 109 of the Constitution provides

- a) Introduction and passing of bills
- b) Joint sitting of both Houses of Parliament
- c) Special procedure to be followed in respect of money bills
- d) Supplementary / additional or excess grants.

118. Who decides as to whether a bill is a Money Bill or not?

- a) The Speaker of the Legislative Assembly
- b) The Chief Justice of the High Court
- c) The Advocate General
- d) None of these

119. Who administers the Oath or affirmation to Judges of High Courts?

- a) The Prime Minister
- b) Chief Justice of the High Court
- c) The Governor of the State
- d) The President of India

120. Which of the following is a Union Territory?

- a) The Andaman and Nicobar Islands;
- b) Lakshadweep;
- c) Dadra and Nagar Haveli;
- d) All of the above are Union Territories

121. Who has the power make Legislation for giving effect to international agreements?

- a) The Parliament only
- b) The State Legislature on request of the President
- c) The court can direct implementation straight way.
- d) None of the above

122. Article 275 of Constitution provides information about-

- a) Consolidated Fund and Public Account of India and States
- b) Contingency Fund.
- c) Taxes on professions, trades, callings and employments
- d) Grants from the Union to certain States

123. Which of the Schedules of the Constitution of India deals with provision of recognised languages?
- a) The Sixth Schedule
 - b) The Seventh Schedule
 - ✓ c) The Eighth Schedule
 - (d) The Fourth schedule

124. The word "secular" was added in the Constitution by:
- a) 49th Constitution Amendment Act
 - ✓ b) 42nd Constitution Amendment Act
 - c) 55th Constitution Amendment Act
 - d) None of these

125. Provisions for recruitment and conditions of service of persons serving the union or a state as per Article ____ of Constitution of India.
- a) ✓ 309
 - b) 310
 - c) 311
 - d) 312

126. The first State to introduce the a law on Right to Information was -
- ✓ a) Tamil Nadu
 - b) U.P
 - c) Maharashtra
 - d) Gujarat

- ✓ 127. The time limit specified in the 'RTI Act, 2005' for the Central / State Information Commissions to decide on complaints is
- a) 15 days
 - b) One Month
 - c) Two Months
 - ✓ d) No such time limit has been specified.

- ✓ 128. The First Appellate Authority under RTI Act should decide on first appeals
- a) within 30 days from the receipt of the first appeals.
 - b) in less number of days than the PIO concerned took to take a decision on the application.
 - c) in exceptional cases within 45 days from the date of receipt of the appeal, if the reasons are recorded.
 - ✓ d) a and c above

129. While inquiring into a complaint, Information Commissions have the power to -
- a) receive evidence on affidavit.
 - b) requisition any public record or copies thereof from any court or office.
 - c) issue summons for examination of witnesses or documents.
 - ✓ d) All the above

130. Central or State Public Information Officer may allow access to information exempted under Section 8(1) of the RTI Act 2005 if public interest in disclosure outweighs the harm to the protected interests.
- ✓ a) The statement is correct.
 - b) The statement is correct but it can be done only after approval of Appellate Authority.
 - c) The statement is correct but it can be done only after the approval of CIC
 - d) None of these

131. **What does Right to Information mean?**
a) inspect works, documents, records.
b) take notes, extracts or certified copies of documents or records.
c) take certified samples of material.
d) ☒ All the above

132. **What is the maximum amount of penalty under RTI Act 2005 that can be imposed on CPIO?**
a) Rs. 300/-
b) ☒ Rs. 25,000/-
c) Rs. 75,000/-
d) Rs. 1,00,000/-

133. **With reference to the RTI Act, which of the following statements is/are true?**

- a) ☒ A third party is a person other than the citizen making a request
b) Third party includes a public authority also.
c) Both a) & b) are true.
d) Neither a) nor b) is true.

134. **The basic object of the Right to Information Act 2005 is:**

- a) to empower the citizens,
✓ b) promote transparency and accountability in the working of the Government,
c) contain corruption,
d) All the above

135. **Which of the following is not correct?**

- a) ☒ The CPIO cannot seek the assistance of any other officer for proper discharge of his or her duties
b) The CPIO may seek the assistance of any other officer for proper discharge of his or her duties
c) Every CPIO shall deal with requests from persons seeking such information and render reasonable assistance to the persons seeking such information
d) CPIO should provide information if not exempted within 30 days

136. **Which of the following statement is /are correct?**

A. A person, who desires to obtain any information under RTI Act 2005, shall make a request in writing only accompanying such fee as may be prescribed

B. A person, who desires to obtain any information under RTI Act 2005, shall make a request through electronic means only accompanying such fee as may be prescribed

C. An RTI application can be made either in writing or through electronic means, accompanying such fee as may be prescribed

D. CPIO shall render all reasonable assistance to the person asking the request orally to reduce the same in writing

- a) Only A. is correct
b) Only B. is correct
c) Only C. is correct
d) ☒ Both C. & D. are correct

137. Under RTI Act 2005, the information is provided to the applicant free of cost,

- A. if the Applicant is a BPL person
 - B. where a public authority fails to provide information within 30 days of receipt of application.
 - C. where a public authority fails to provide information within 45 days of receipt of application.
- a) A. only b) B. only
c) C. only d) ☒ Both A. and B.

138. Under RTI Act 2005 which of the following statements is correct:

- A. Information, the disclosure of which would cause a breach of privilege of Parliament can be denied
 - B. Information the disclosure of which would cause the breach of privilege of State Legislature can be denied
 - C. Information, the disclosure of which would cause a breach of privilege of Parliament cannot be denied
 - D. Information the disclosure of which would cause the breach of privilege of State Legislature cannot be denied
- a) ☒ A. and B. only b) B. and C. only
c) C. and D. only d) D. and A. only

139. As per section 12 (2) of RTI Act 2005, the Central Information Commission shall consist of :

- ☒ a) The Chief Information Commissioner and such number of Central Information Commissioners not exceeding ten as may be deemed necessary
- b) The Chief Information Commissioner and such number of Central Information Commissioners not exceeding five as may be deemed necessary
- c) The Chief Information Commissioner and such number of Central Information Commissioners not exceeding two as may be deemed necessary
- d) The Chief Information Commissioner and such number of Central Information Commissioners not exceeding three as may be deemed necessary

140. Who can place an Information Commissioner under suspension?

- A. ☒ The President of India
 - B. The Prime Minister of India
 - C. The Chief Justice of India
- a) A only b) A and B only
c) A and C only d) All the above

141. Choose the correct option as per section 13(5) of RTI Act 2005?

- a) The salaries and allowances payable to and other terms and conditions of service of Chief Information Commissioner is the same as that of the Chief Election Commissioner.
- b) The salaries and allowances payable to and other terms and conditions of service of Chief Information Commissioner is the same as that of the Chief Justice of High Court.
- c) The salaries and allowances payable to and other terms and conditions of service of Chief Information Commissioner is the same as that of the Justice of High Court.
- d) The salaries and allowances payable to and other terms and conditions of service of Chief Information Commissioner is the same as that of the Justice of Supreme Court.

142. It shall be the duty of the Central Information Commission to receive and enquire into a complaint from any person

A. who has not been given a response to a request for information or access to information within the time limit specified under RTI Act 2005.

B. who has been required to pay an amount of fee which he or she considers unreasonable;

C. issuing summons for examination of witnesses or documents.

a) A. only

b) B. only

c) C. only

d) All the above ✓

143. The Central Information Commission while inquiring into any matter under section 18 of RTI Act:

A. cannot compel a person to give written evidence on oath like a civil court does.

B. can compel a person to give written evidence on oath like a civil court does.

C. can enforce the attendance of a person like a civil Court does

Options:

a) B. and C. only

b) C. and A. only

c) A. and B. only

d) A. only

144. The Central Information Commission while inquiring into any matter under section 18 of RTI Act

A. can not requisition any public record or copies thereof from any court or office,

B. can requisition any public record or copies thereof from any court or office,

C. can not receive evidence on affidavit like a civil court does.

a) A. only b) C. only

c) B. only d) A. and C. only

145. While disposing the second appeal under section 19 of RTI Act, the Central Information Commission

A. can reject the appeal

B. can require the public authority to compensate the complainant for any loss or other detriment suffered

C. can impose any of the penalties provided under this Act

Options:

a) A. and B. only

✓ b) B. and C. only

c) All A. B. C.

d) C. and A. only

146. Who can file an appeal against the decision of the CPIO under RTI Act ?

A. The Information seeker

B. The Third party aggrieved by the order of the CPIO

C. Any citizen

Options:

✓ a) A. only

b) A. and B. only

c) C. only

d) B. and C. only

147. Which one of the following statements is true?

A. In any appellate proceedings the onus lies on CPIO to prove that he acted diligently.

B. In any appellate proceedings the onus lies on information seeker to prove that the CPIO did not act diligently.

C. The Information Commission does not have powers to recommend disciplinary action against CPIO.

Options:

a) A. only

b) B. only

c) B. and C. only

d) A. and B. only ✓

148. Which of the following statements is true?

A. When information sought for is in respect of allegations of violation of human rights by security agencies, it shall only be provided after the approval of Central Government.

B. Information in respect of allegations of violation of human rights by security agencies is fully exempt from disclosure under RTI Act.

C. When information sought for is in respect of allegations of violation of human rights by security agencies, it shall only be provided after the approval of Central Information Commission

Options:

a) A. only

- b) B. only

c) C. only

d) A. and C. only

149. Which of the following organisations is included in Schedule Two of the RTI Act?

a) Border Security Force.

b) Central Reserve Police Force.

c) National Security Guards..

✓ d) All the three above

150. The provision relating to 'suomotu' disclosure is contained in -

✓ a) Section 4 of RTI Act

b) Section 11 of RTI Act

c) Section 22 of RTI Act

d) Section 24 of RTI Act